

HOUSE No. 245

The Commonwealth of Massachusetts

PRESENTED BY:

Danielle W. Gregoire

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act regarding the use of aversive therapy.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Danielle W. Gregoire</i>	<i>4th Middlesex</i>	<i>1/16/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>3/4/2025</i>
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>3/24/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>5/15/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>5/21/2025</i>
<i>William F. MacGregor</i>	<i>10th Suffolk</i>	<i>7/17/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>7/17/2025</i>
<i>Adrian C. Madaro</i>	<i>1st Suffolk</i>	<i>7/17/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>7/31/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>8/14/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>11/4/2025</i>
<i>Paul R. Feeney</i>	<i>Bristol and Norfolk</i>	<i>12/9/2025</i>

HOUSE No. 245

By Representative Gregoire of Marlborough, a petition (accompanied by bill, House, No. 245) of Danielle W. Gregoire and James B. Eldridge for legislation to prohibit the use of procedures which cause physical pain or deny a reasonable humane existence to persons with disabilities. Children, Families and Persons with Disabilities.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 180 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act regarding the use of aversive therapy.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 16 of Chapter 6A of the General Laws, as appearing in the 2022 official edition,
2 is hereby amended by inserting the following text:-

3 No program, agency, or facility funded, operated, licensed, or approved by any agency or
4 subdivision of the Commonwealth shall administer or cause to be administered to any person
5 with a physical, intellectual, or developmental disability any procedure which causes obvious
6 signs of physical pain, including, but not limited to, hitting, pinching, and electric shock for the
7 purposes of changing the behavior of the person.

8 No such program may employ any form of physical contact or punishment that is
9 otherwise prohibited by law, or would be prohibited if used on a non-disabled person.

10 No such program may employ any procedure which denies a person with a physical,
11 intellectual, or developmental disability reasonable sleep, food, shelter, bedding, bathroom
12 facilities, and any other aspect expected of a humane existence in the Commonwealth.